

1963 CHAPTER 5

County Courts (Jurisdiction) Act 1963

ARRANGEMENT OF SECTIONS

Section.

1. Increase of amount by reference to which county court jurisdiction is limited in actions for recovery of, or relating to, land.
2. Increase of amount by reference to which right of appeal from county court on question of fact is conferred in certain actions relating to land.
3. Amendment of provisions of County Courts Act 1959 as to construction of references to net annual value for rating.
4. Increase of amount determining assignment by Landlord and Tenant Act 1954 of jurisdiction between county court and High Court in certain proceedings relating to land.
5. Short title and commencement.

An Act to increase the amounts by reference to which jurisdiction conferred on county courts by the County Courts Act 1959 is limited, and a right of appeal from such courts on questions of fact is by that Act conferred, in certain proceedings in which land is concerned, and make to that Act amendments consequential on the increase; to amend the provisions of that Act with respect to the construction of references to net annual value for rating; and to increase the amount by reference to which is determined the question whether the High Court or a county court has jurisdiction to entertain proceedings under certain other enactments.

[28th February 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Increase of amount by reference to which county court jurisdiction is limited in actions for recovery of, or relating to, land.

1.—(1) The amount by reference to which the jurisdiction of a county court in actions for the recovery of land, or in which the title to a hereditament comes in question, is limited by sections 48 and 51 of the County Courts Act 1959 (hereafter in this Act referred to as "the principal Act") shall be increased from one hundred pounds in net annual value for rating to four hundred pounds in net annual value for rating, and there shall be similarly increased—

- (a) the amount by reference to which the jurisdiction of such a court to grant relief where a lessor has exercised a right of re-entry for non-payment of rent is limited by section 191 (3) of the principal Act;

- (b) the amount by reference to which the jurisdiction of such a court under section 146 of the Law of Property Act 1925 to grant relief where a lessor is proceeding to enforce a right of entry or forfeiture otherwise than by action is limited by Schedule 1 to the principal Act; and
- (c) the amount by reference to which the jurisdiction of such a court under section 147 of the said Act of 1925 to grant relief against notices to effect decorative repairs is limited by that Schedule;

and accordingly, in sections 48 (1) and 51 (a) and (b) of the principal Act and in the entries in Schedule 1 thereto relating respectively to sections 146 and 147 of the said Act of 1925, for the words "one hundred pounds" there shall be substituted the words "four hundred pounds".

(2) Section 49 (1) of the principal Act (which, in a case where an action for the recovery of land is commenced in a county court, empowers the defendant or his landlord to apply to a judge of the High Court for a summons to the plaintiff to show cause why the action should not be transferred to the High Court on the ground that the title to land having at the time when the action was commenced a net annual value for rating exceeding one hundred pounds would be affected by the decision in the action) shall, in the case of an action so commenced after the commencement of this Act, have effect with the substitution, for the words "one hundred pounds" of the words "four hundred pounds".

2.—(1) In section 109 (2) of the principal Act, in paragraph (a) Increase of (by virtue of which there is included, amongst the proceedings amount by which a right of appeal to the Court of Appeal is conferred by reference to which that section, an action founded on contract or tort, or for money to which recoverable by statute, where the title to a hereditament comes right of appeal from in question, and the net annual value for rating of that heredita- county court ment or, in the case of an easement or licence, that of the on question of fact is hereditament in respect of which the easement or licence is claimed, or on, through, over or under which it is claimed, exceeds certain actions sixty pounds) and in paragraph (b) (by virtue of which there is relating of land of a net annual value for rating exceeding sixty pounds) to land. for the words "sixty pounds" there shall be substituted the words "two hundred pounds".

(2) The amendments made by the foregoing subsection shall not apply to an action commenced before the commencement of this Act or have effect so as to limit the operation, in the case of an action so commenced, of paragraph (c) of the said section 109 (2) (by virtue of which there is included, amongst the proceedings referred to in the foregoing subsection, any action where

there is a counterclaim to which either paragraph (a) or (b) of that subsection would apply if the counterclaim had been the subject of a separate action).

Amendment of provisions of County Courts Act 1959 as to construction of references to net annual value for rating.

3.—(1) In section 200 (2) of the principal Act (which requires that, where property of which the value is in question does not consist of one or more hereditaments having at the time when the relevant proceedings are commenced a separate net annual value for rating, the property or such part of it as does not so consist shall, for the purposes of that Act, be taken to have a net annual value for rating equal to three fifths of its value by the year) the words “three fifths of” shall be omitted.

(2) The said section 200 (2) shall not apply in a case where the property of which the value is in question forms part of a hereditament having at the time in question a net annual value for rating of an amount not exceeding four hundred pounds, and in such a case the property shall, for the purposes of the principal Act, be taken to have a net annual value for rating equal to that of the hereditament of which it forms part.

Increase of amount determining assignment by Landlord and Tenant Act 1954 of jurisdiction between county court and High Court in certain proceedings relating to land.

4. In relation to an application or reference made to the court after the commencement of this Act under Part I of the Landlord and Tenant Act 1927, Part II of the Landlord and Tenant Act 1954 or Part II or V of Schedule 7 to the Opencast Coal Act 1958, section 63 (2) of the said Act of 1954 (which assigns jurisdiction to the county court in a case in which the rateable value of the holding that is the subject of the application or reference does not exceed five hundred pounds, and to the High Court in a case in which that value exceeds five hundred pounds) shall have effect with the substitution, for the words “five hundred pounds” (in both places where they occur), of the words “two thousand pounds”.

Short title and commencement.

5.—(1) This Act may be cited as the County Courts (Jurisdiction) Act 1963.

(2) This Act shall come into force on 1st April 1963.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Law of Property Act 1925	15 & 16 Geo. 5. c. 20.
Landlord and Tenant Act 1927	17 & 18 Geo. 5. c. 36.
Landlord and Tenant Act 1954	2 & 3 Eliz. 2. c. 56.
Opencast Coal Act 1958	6 & 7 Eliz. 2. c. 69.
County Courts Act 1959	7 & 8 Eliz. 2. c. 22.